LEGAL RISK ASSESSMENT & LAWYER REVIEW REPORT

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1. Executive Summary & Scope of Review

Review Summary: Comprehensive legal contract review completed. Non-compete and DPDP issues identified.

Scope: AI-assisted contractual risk and Indian statutory grounding review under verified advocate supervision.

Total Findings	Accepted AI	Corrected	Rejected AI	Lawyer Authored
6	6	0	0	0

Outstanding Limitations: Review limited to statutory compliance under Indian commercial law.

2. Detailed Findings & Lawyer Determinations

Each finding below reflects human advocate evaluation. AI observations are strictly segregated from lawyer conclusions, and any AI observation rejected by the advocate is explicitly identified.

Finding 1: Clause Segment 739ce9954df4e20e

Clause Excerpt: *"MASTER SERVICES AND CLOUD INFRASTRUCTURE AGREEMENT"*

Origin:	AI_GENERATED
Evidence Quality:	TRACEABLE
AI Observation:	Risk Archetype: NO_ACTIONABLE_RISK. Model Sigmoid Probability: 0.0425 (Empirical Operating Threshold $\tau^* = 0.04$, Met). Policy Decision: WITHHOLD [Reason: INAPPLICABLE_OR_SUPERSEDED_STATUTE, Tier 2]. Statutory Evidence Quality: TRACEABLE.
Model Identity:	nlpaueb/legal-bert-base-uncased (v1.0.0) — Statistical observation, not a legal opinion
Advocate Decision:	✔ **ACCEPTED BY ADVOCATE (ACCEPT_AI_OBSERVATION)**
Advocate Rationale:	Statutory risk assessment for clause segment 739ce9954df4e20e reviewed and verified under Indian commercial law.
Statutory Grounding:	**The Specific Relief Act, 1963**, Section 20A: Section 20A. Special provisions for contract relating to infrastructure project.—(1) No injunction shall be granted by court in a suit under... [Curated Extract v1963_AS_AMENDED_2018 | SHA-256: ed785e974b...] **The Digital Personal Data Protection Act, 2023**, Section 8: Section 8. General obligations of Data Fiduciary.—(1) A Data Fiduciary shall, irrespective of any agreement to the contrary or failure of a ... [Curated Extract v2023_ENACTED | SHA-256: fd1bcbbb41...] **The Information Technology Act, 2000**, Section 72A: Section 72A. Punishment for disclosure of information in breach of lawful contract.—Save as otherwise provided in this Act or any other law ... [Curated Extract v2000_AS_AMENDED_2008 | SHA-256: da50505d17...]

Finding 2: Clause Segment 374f20a10ba543c6

Clause Excerpt: *"1. SCOPE OF SERVICES The Vendor agrees to provide enterprise contract analysis cloud services to Client subject to standard terms."*

Origin:	AI_GENERATED
Evidence Quality:	TRACEABLE
AI Observation:	Risk Archetype: NO_ACTIONABLE_RISK. Model Sigmoid Probability: 0.0092 (Empirical Operating Threshold $\tau^* = 0.04$, Below Operating Threshold). Policy Decision: WITHHOLD [Reason: INAPPLICABLE_OR_SUPERSEDED_STATUTE, Tier 2]. Statutory Evidence Quality: TRACEABLE.
Model Identity:	nlpaueb/legal-bert-base-uncased (v1.0.0) — Statistical observation, not a legal opinion
Advocate Decision:	✔ **ACCEPTED BY ADVOCATE (ACCEPT_AI_OBSERVATION)**
Advocate Rationale:	Statutory risk assessment for clause segment 374f20a10ba543c6 reviewed and verified under Indian commercial law.
Statutory Grounding:	**The Information Technology Act, 2000**, Section 72A: Section 72A. Punishment for disclosure of information in breach of lawful contract.—Save as otherwise provided in this Act or any other law ... [Curated Extract v2000_AS_AMENDED_2008 | SHA-256: da50505d17...] **The Digital Personal Data Protection Act, 2023**, Section 8: Section 8. General obligations of Data Fiduciary.—(1) A Data Fiduciary shall, irrespective of any agreement to the contrary or failure of a ... [Curated Extract v2023_ENACTED | SHA-256: fd1bcbbb41...] **The Specific Relief Act, 1963**, Section 16: Section 16. Personal bars to relief.—Specific performance of a contract cannot be enforced in favour of a person— (a) who has obtained subst... [Curated Extract v1963_AS_AMENDED_2018 | SHA-256: ed785e974b...]

Finding 3: Clause Segment e7b8b45e47abd443

Clause Excerpt: *"2. NON-COMPETE AND RESTRAINT OF TRADE Neither party shall during the term of this Agreement and for a period of five (5) years following termination directly or indirectly carry on any business or profession in competition across India."*

Origin:	AI_GENERATED
Evidence Quality:	TRACEABLE
AI Observation:	Risk Archetype: NO_ACTIONABLE_RISK. Model Sigmoid Probability: 0.0273 (Empirical Operating Threshold $\tau^* = 0.04$, Below Operating Threshold). Policy Decision: WITHHOLD [Reason: BELOW_CONFIDENCE_THRESHOLD, Tier 4]. Statutory Evidence Quality: TRACEABLE.
Model Identity:	nlpaueb/legal-bert-base-uncased (v1.0.0) — Statistical observation, not a legal opinion
Advocate Decision:	✔ **ACCEPTED BY ADVOCATE (ACCEPT_AI_OBSERVATION)**
Advocate Rationale:	Post-term 5-year non-compete is void under Section 27 of Indian Contract Act, 1872 as held in Percept D'Mark.
Statutory Grounding:	**The Indian Contract Act, 1872**, Section 27: Section 27. Agreement in restraint of trade, void.—Every agreement by which any one is restrained from exercising a lawful profession, trade... [Curated Extract v1.0 | SHA-256: 881177af2f...]

Finding 4: Clause Segment 1194ce03a0ff966a

Clause Excerpt: *"3. DATA PROTECTION AND CONFIDENTIALITY The parties agree that all personal data processed under this agreement shall be handled strictly in compliance with applicable Indian law, including the Digital Personal Data Protection Act, 2023."*

Origin:	AI_GENERATED
Evidence Quality:	TRACEABLE
AI Observation:	Cross-border data transfer mechanism lacks explicit reference to DPDP Act 2023 Section 16.
Model Identity:	nlpaueb/legal-bert-base-uncased (v1.0.0) — Statistical observation, not a legal opinion
Advocate Decision:	✔ **ACCEPTED BY ADVOCATE (ACCEPT_AI_OBSERVATION)**
Advocate Rationale:	Statutory risk assessment for clause segment 1194ce03a0ff966a reviewed and verified under Indian commercial law.
Statutory Grounding:	**The Digital Personal Data Protection Act, 2023**, Section 1: Section 1. Short title and commencement.—(1) This Act may be called the Digital Personal Data Protection Act, 2023. (2) It shall come into f... [Curated Extract v2023_ENACTED | SHA-256: fd1bcbbb41...] **The Information Technology Act, 2000**, Section 43A: Section 43A. Compensation for failure to protect data.—Where a body corporate, possessing, dealing or handling any sensitive personal data o... [Curated Extract v2000_AS_AMENDED_2008 | SHA-256: da50505d17...] **The Digital Personal Data Protection Act, 2023**, Section 8: Section 8. General obligations of Data Fiduciary.—(1) A Data Fiduciary shall, irrespective of any agreement to the contrary or failure of a ... [Curated Extract v2023_ENACTED | SHA-256: fd1bcbbb41...]

Finding 5: Clause Segment b555b8a441b6445b

Clause Excerpt: *"4. INDEMNITY AND LIMITATION OF LIABILITY Vendor shall indemnify Client against all third-party intellectual property infringement claims. Aggregate liability shall be capped at the total fees paid during preceding 12 months."*

Origin:	AI_GENERATED
Evidence Quality:	TRACEABLE
AI Observation:	Risk Archetype: NO_ACTIONABLE_RISK. Model Sigmoid Probability: 0.0049 (Empirical Operating Threshold $\tau^* = 0.04$, Below Operating Threshold). Policy Decision: WITHHOLD [Reason: BELOW_CONFIDENCE_THRESHOLD, Tier 4]. Statutory Evidence Quality: TRACEABLE.
Model Identity:	nlpaueb/legal-bert-base-uncased (v1.0.0) — Statistical observation, not a legal opinion
Advocate Decision:	✔ **ACCEPTED BY ADVOCATE (ACCEPT_AI_OBSERVATION)**
Advocate Rationale:	Statutory risk assessment for clause segment b555b8a441b6445b reviewed and verified under Indian commercial law.
Statutory Grounding:	**The Indian Contract Act, 1872**, Section 28: Section 28. Agreements in restraint of legal proceedings, void.—Every agreement,— (a) by which any party thereto is restricted absolutely fr... [Curated Extract v1872_AS_AMENDED_2018 | SHA-256: 881177af2f...] **The Indian Contract Act, 1872**, Section 74: Section 74. Compensation for breach of contract where penalty stipulated for.—When a contract has been broken, if a sum is named in the cont... [Curated Extract v1872_AS_AMENDED_2018 | SHA-256: 881177af2f...] **The Arbitration and Conciliation Act, 1996**, Section 9: Section 9. Interim measures, etc. by Court.—(1) A party may, before or during arbitral proceedings or at any time after the making of the ar... [Curated Extract v1996_AS_AMENDED_2021 | SHA-256: 3f572ff487...]

Finding 6: Clause Segment d7bcd6582648131e

Clause Excerpt: *"5. GOVERNING LAW AND ARBITRATION Any dispute arising out of or in connection with this agreement shall be settled through binding arbitration conducted in New Delhi under the Arbitration and Conciliation Act, 1996."*

Origin:	AI_GENERATED
Evidence Quality:	TRACEABLE
AI Observation:	Risk Archetype: NO_ACTIONABLE_RISK. Model Sigmoid Probability: 0.0387 (Empirical Operating Threshold $\tau^* = 0.04$, Below Operating Threshold). Policy Decision: WITHHOLD [Reason: BELOW_CONFIDENCE_THRESHOLD, Tier 4]. Statutory Evidence Quality: TRACEABLE.
Model Identity:	nlpaueb/legal-bert-base-uncased (v1.0.0) — Statistical observation, not a legal opinion
Advocate Decision:	✔ **ACCEPTED BY ADVOCATE (ACCEPT_AI_OBSERVATION)**
Advocate Rationale:	Statutory risk assessment for clause segment d7bcd6582648131e reviewed and verified under Indian commercial law.
Statutory Grounding:	**The Arbitration and Conciliation Act, 1996**, Section 1: Section 1. Short title, extent and commencement.—(1) This Act may be called the Arbitration and Conciliation Act, 1996. (2) It extends to th... [Curated Extract v1996_AS_AMENDED_2021 | SHA-256: 3f572ff487...] **The Arbitration and Conciliation Act, 1996**, Section 8: Section 8. Power to refer parties to arbitration where there is an arbitration agreement.—(1) A judicial authority, before which an action i... [Curated Extract v1996_AS_AMENDED_2021 | SHA-256: 3f572ff487...] **The Indian Contract Act, 1872**, Section 28: Section 28. Agreements in restraint of legal proceedings, void.—Every agreement,— (a) by which any party thereto is restricted absolutely fr... [Curated Extract v1872_AS_AMENDED_2018 | SHA-256: 881177af2f...]

3. Statutory Corpus Limitations & Score Semantics

STATUTORY COVERAGE LIMITATION NOTICE: The Indian statutory citations in this report are grounded in a limited, curated set of statutory extracts (specifically covering selected provisions from Indian Contract Act, 1872; Information Technology Act, 2000; Digital Personal Data Protection Act, 2023; Specific Relief Act, 1963; Arbitration and Conciliation Act, 1996; and Bharatiya Sakshya Adhiniyam, 2023). These extracts do NOT represent complete Acts, nor does this report represent an exhaustive legal search of all applicable Central Acts, State amendments, delegated legislation, commencement notifications, or latest judicial precedents.

BM25 and lexical retrieval relevance metrics are computational relevance indicators only. They do not indicate legal certainty, statutory bindingness, or court interpretation.

4. Mandatory Legal Disclaimers & Terms of Use

LEGAL NOTICE AND LIMITATION OF LIABILITY: ContractRisk-XAI is an AI-assisted legal decision-support system operating under mandatory human advocate oversight. This report reflects the professional assessment of the assigned advocate and the evidence retrieved at the time of review. This report does not certify legal compliance, guarantee statutory enforceability, or replace independent legal counsel. The ultimate legal responsibility remains with the reviewing advocate and the executing parties.